



McCormick – Unilever Foods Business

MN - 75044

Phase 1 Determination

Acquisition may be put into effect

15 September 2026

1. Determination and statement of reasons

Notified acquisition	McCormick & Company, Incorporated (McCormick) proposes to acquire Unilever PLC's (Unilever) global foods business, excluding Unilever's food businesses in India, Nepal and Portugal, and Unilever's Lifestyle and Nutrition, Buavita and Lipton Ready to Drink businesses (Unilever Foods) (the Acquisition). Post-Acquisition, Unilever will hold approximately 9.9% of the issued shares in the merged entity.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, McCormick, is a US-headquartered, publicly listed global manufacturer, marketer and distributor of spices, herbs, seasoning mixes, sauces, condiments and other flavour-related products. McCormick operates through two business segments: Consumer, through which it supplies products to customers via retail channels, and Flavour Solutions, through which it supplies food service customers and food manufacturers with products and customised flavouring solutions. The target, Unilever Foods, is one of Unilever business groups, and it comprises a portfolio of about 75 brands. Unilever Foods' business areas can be categorised into condiments (including mayonnaise, ketchup and mustards), cooking aids and mini meals (including soups, bouillons, seasonings, recipe sauces, ready meals and gravy products), and Unilever Food Solutions, through which it provides products and solutions to food service customers. Unilever is a UK-headquartered, fast-moving consumer goods group listed on the London Stock Exchange and Euronext Amsterdam.
Overlap and relationship between the Parties	McCormick and Unilever Foods (the Parties) overlap supply of recipe mixes, side dishes and bottled sauces via retail channels in Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, third party and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In

	reaching its decision, and based on the material before it, the ACCC makes the following findings. • The Parties are not close competitors in the supply of recipe mixes, side dishes and bottled sauces in Australia. • In relation to the supply of side dishes, despite concerns raised in third-party feedback regarding consolidation, McCormick is a small competitor and the increase in the merged entity's market share would be limited. • In relation to the supply of recipe mixes and bottled sauces, the aggregation resulting from the Acquisition is estimated to be low. • The merged entity would continue to face competition from multiple alternative suppliers of recipe mixes, side dishes and bottled sauces through retail channels in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**